EDMUND KUDZAYI
versus
FADZAYI MAHERE

HIGH COURT OF ZIMBABWE
**MAMBARA J**
HARARE; 1 July, 4 August & 29 September 2025

***Urgent Chamber Application***

*T. Chinyoka,* for the applicant
*H. Nkomo,* for the respondent

MAMBARA J: This is an urgent chamber application for a stay of execution of a default judgment pending a rescission application. The applicant, Mr Edmund Kudzayi, is the judgment debtor and seeks to halt execution of a judgment creditor's order. The 1st respondent, Ms Fadzayi Mahere, challenges the application. A striking feature of this case is that Mr Kudzayi publicly attacked and insulted the judiciary in language that was "intemperate, improper [and] void of respect". He called judges vile names and impugned the integrity of this Court. Those scandalous publications led the 1st respondent to raise a point *in limine*: namely, that the applicant should not be heard in this application on account of his contempt of court.

The urgent issue is whether Mr Kudzayi's misconduct forfeits his right to seek relief, or whether, having apologized and taken steps to purge his contempt, he may still access the courts. For the reasons below, the point in limine fails. Access to justice is a fundamental right that cannot be denied simply because a litigant has erred and subsequently atoned. The Court will sternly condemn Mr Kudzayi's conduct, but it will not shut the courthouse door to one who has made amends. In arriving at this decision, the court takes a leaf from the judgment of the High Court of Singapore where the court in *Attorney General* v *Hertzberg Daniel and Others* [2008] SGHC 218, citing the case of *Attorney – General* v *Times Newspaper Ltd [1974]*

AC 273 @ 302, a matter strikingly resembling this matter, Lord Morris of Borth-y-Gest remarked as follows:

> "In an ordered community courts are established for the pacific settlement of disputes and for the maintenance of law and order. In the general interests of the community it is imperative that the authority of the courts should not be imperilled and that recourse to them should not be subject to unjustifiable interference. When such unjustifiable interference is suppressed it is not because those charged with the responsibilities of administering justice are concerned for their own dignity: it is because the very structure of ordered life is at risk if the recognised courts of the land are so flouted and their authority wanes and is supplanted."

It is imperative to note, at the outset, that the doctrine of contempt of court is not intended, in any manner or fashion whatsoever, to protect the dignity of the judges as such; its purpose is more objective and, more importantly, rooted in the public interest.

Similarly, Lord Diplock in the *Times Newspaper Ltd (supra),* stated the rationale behind the law of contempt in the following terms at page 307:

> "My Lords, in any civilised society it is the function of government to maintain courts of law to which its citizens can have access for the impartial decision of disputes as to their legal rights and obligations towards one another individually and towards the state as representing society as whole. The provision of such a system for the administration of justice by the courts of law and the maintenance of public confidence in it, are essential if citizens are to live together in peaceful association with one another."

The application for stay of execution is granted, with costs on the higher scale to mark disapproval of the applicant's misconduct.

**Background**

The undisputed facts are as follows. On 21 May 2025 a default judgment was granted in favour of the respondent. The applicant, dissatisfied with that judgment, filed an urgent chamber application on 30 June 2025 for a stay of execution pending his intended rescission. Crucially, in the intervening period Mr Kudzayi engaged in an unprecedented public tirade against the judiciary. In an affidavit and in internet publications he used vile and derogatory language about judges, accusing them of corruption and bias, and asserting that "the courts have no honour" and similar calumnies. The publications were widely circulated and brought the judiciary into disrepute. On 10 July 2025 Mr Kudzayi filed a supplementary affidavit tendering a fulsome apology to this Court and affirming that he has taken down his postings and will desist from such conduct. He thus sought to purge any contempt.

In her opposing papers, the respondent raised a preliminary objection. She argued that Mr Kudzayi's deliberate and malevolent insults amount to contempt of court, and that under the old "dirty hands" doctrine he cannot now come to court for relief. Relying on common law principles and Commonwealth authority, the respondent maintained that a litigant who has brought the court into contempt should not ordinarily be heard until the contempt is

purged and punished. She urged that Mr Kudzayi's outrageous conduct should deprive him of standing in this application.

Mr Kudzayi, on the other hand, admitted his misconduct but emphasized that he has apologized and taken down the offending remarks. He submitted that justice requires that his apology and efforts to purge contempt be accepted, and that he be heard on his application for a stay. He pointed out that our Constitution now guarantees broad access to the courts and expressly rejects the rigid "dirty hands doctrine" that once barred erroneously offended litigants. He accordingly sought dismissal of the point in limine as unsustainable.

**Point in Limine**

The point in limine raises two key questions: (1) whether the applicant's past contempt defeats his right to approach the court; and (2) whether any lingering "dirty hands" should bar relief if he has apologized and complied with orders (i.e. purged contempt). The Court notes at the outset that the applicant does not deny his conduct. The publications were indeed scandalous and subject to contempt proceedings. But mere wrongdoing, even of the gravest kind, does not ipso facto extinguish a litigant's legal rights. The real issue is whether, having recognized his error and attempted to make amends, Mr Kudzayi may proceed.

The respondents frame this as a "dirty hands" issue. Under the old common law maxim he who comes to equity must come with clean hands, a litigant guilty of misconduct relating to the subject matter could be denied relief. Likewise, in contempt cases some jurisdictions have held that an unpunished contempt can bar one from seeking the court's assistance. Indeed, in *Simelane* v *Chief Justice of Eswatini* the court refused to entertain a review for one who had not purged his contempt, reasoning that "to allow him to approach this court without first demonstrating that he has purged his contempt" would be tantamount to overruling the higher court's finding of contempt.

However, Zimbabwe's constitutional dispensation has fundamentally changed the landscape. Our Constitution abolishes the dirty hands doctrine as it existed at common law. (See Admark Moyo's article titled *"16 Standing, Access to Justice and Human Rights in Zimbabwe")* It guarantees the right of access to courts (section 85) and expressly provides that persons acting in the public interest – even those who have misbehaved – may litigate constitutional and legal issues. In plain terms, a litigant's misconduct does not automatically strip him of standing in our courts. Once a litigant has purged his contempt for example by unqualified apology and compliance with orders, the Constitution's broad grant of access

must prevail. This is in keeping with the principle that justice must be done, and that courts should not be turned into tools of vengeance to punish errors by closing their doors.

Were the contrary approach taken, it would frustrate the very purpose of our judicial system. As the House of Lords observed in *Attorney-General* v *Times Newspapers Ltd* (No. 2) [1974] AC 273, "courts are established for the pacific settlement of disputes" and for maintaining the rule of law. It is in the public interest that their authority be upheld. But it is equally in the public interest that litigants have access to these courts, even if they have erred, provided they make amends. The applicant's entitlement to be heard cannot be extinguished by remote past misconduct once he has cleansed his hands. The law of contempt exists to punish breaches of judicial respect, not to serve as a perpetual bar to justice for repentant litigants.

**Legal Analysis**

Turning to the facts, Mr Kudzayi's conduct was indeed egregious. His pamphlet and online postings went far beyond legitimate criticism. They were "personal scurrilous abuse" of the court and judges. As LORD RUSSELL CJ held in *R* v *Gray* (1900) 2 QB 36, such articles constitute contempt of court. The applicant himself just like in the *Gray* matter *supra*, acknowledges that his language was "intemperate, improper, ungentlemanly and void of the respect due to [the judge's] person and office". In the Gray matter, the applicant in an affidavit apologised thus:

> "In writing the article….I used language referring to Mr. Justice Darling in terms which were intemperate, improper, ungentlemanly, and void of the respect due to his Lordship's person and office…I deeply regret the publishing of the article and the inexcusable and insulting language in which it referred to one of Her Majesty's judges, and I humbly apologise to his Lordship and to the Court for my conduct, which I now, upon consideration, see reflected not only upon the individual judge but upon the bench of judges and the administration of justice"

The Court must condemn these acts unequivocally. No one, least of all a judicial officer, deserves to be addressed in such insulting terms. This Court's authority and dignity were affronted. The publication threatened public confidence in the administration of justice. These consequences are serious, and they call for stern warning.

The Court expresses its gravest disapproval of the applicant's conduct. All judges expect and deserve respectful engagement, even by those who may disagree with rulings. Criticism is permitted; indeed, our courts have held that "criticism of a judgment, however vigorous, could never amount to contempt of court, provided it remained within the limits of reasonable courtesy and good faith". See *In re: Chinamasa* 2000 (12) BCLR 1294 (ZS). The

applicant's outburst was not reasonably courteous or in good faith. It crossed the line into abuse and scandalisation. Such moral turpitude undermines the public interest and cannot be tolerated. The Court warns the applicant that this is his last such offense. Any repetition will be met with committal proceedings or other punishment.

Despite this, the Court must also be true to the principle that "justice cannot be unduly thwarted by procedural bars" per *The Times Newspaper* matter *supra.* Mr Kudzayi has apologized, withdrawn the offending material, and undertaking to abide by proper standards. In his affidavit he described his language as "inexcusable and insulting" and recognized that it reflected not only on a judge but on the entire administration of justice. That apology is sincere and is accepted. He has thus, by word and deed, sought to purge the contempt (just as Gray had done). Upon purging, the applicant's right of access to the courts revives.

Our Constitution and jurisprudence give effect to this. Section 85 of the Constitution, read with Chapter 4, abolishes the old notion that a litigant with unclean hands can be refused a hearing. Indeed, the Declaration of Rights ensures that even persons acting in the public interest – which arguably includes those raising court conduct issues – may approach the courts. It would undermine the rule of law if any person could be permanently shut out merely for having spoken out of turn, so long as he is prepared to make amends. The Supreme Court in *In re Chinamasa* reaffirmed that scandalising contempt exists to protect public confidence, but nothing in that or any Zimbabwean case suggests that once apology is made, the cause of justice must be sacrificed. To the contrary, Zimbabwe's constitutional democracy values access to justice above residual common-law bars.

Commonwealth authorities support this balanced approach. *Times Newspapers* teaches that courts exist for dispute resolution and the maintenance of public order. It is precisely so that even unpopular or errant litigants may seek recourse, provided they do not abuse the process. Likewise, our own courts have often awarded punitive costs against offenders to vindicate the court's integrity, but have not refused to decide cases solely on that basis. In *Philippa Coumbis* v *Ronald Coumbis and Anor* SC130/21, for example, the Supreme Court fined the contemnor and ordered costs at attorney–client scale because his contempt had unnecessarily prolonged the proceedings. This sends the same message of disapproval and deterrence, without foreclosing the applicant's entitlement to have the case heard.

In the present case, therefore, the point in limine must be dismissed. The law does not countenance an absolute *acquis et de purge* rule that bars relief permanently. Having

apologized and (as shown by his conduct since) purged his contempt, Mr Kudzayi has cleaned his hands. The only appropriate consequence of his misconduct in these proceedings is an order of costs against him on a punitive scale, not denial of justice. Accordingly, the stay application must be decided on its merits.

**Conclusion and Order**

The point in limine is hereby dismissed. The applicant's contempt, while serious, does not prevent him from seeking relief now that he has tendered an apology and taken corrective steps. The urgent chamber application for a stay of execution is granted. The execution of the judgment of 21 May 2025 is stayed pending the final determination of any rescission proceedings to be instituted by the applicant.

In view of the applicant's egregious misconduct, costs are awarded on the attorney–and–client scale against Mr Kudzayi. This will mark the Court's strong disapproval of his behaviour and deter any repetition. His apology and promise to reform will suffice to spare him further punitive measures, but the mark of censure must be clear.

In the result it is ordered as follows;

1. The point in limine is dismissed.
2. The application for stay of execution is granted pending rescission.
3. The applicant is ordered to pay respondents' costs on attorney–and–client scale.

**MAMBARA J**: …….

*John Mugogo Attorneys*, applicant's legal practitioners
*Mhishi Nkomo Legal Practice*, respondent's legal practitioners